

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at DAFFARS 5302.101? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☐ > \$750K and ≤ \$15M ☒ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: AFLCMC/HBSK Hanscom Air Force Base, MA 01731

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): E-3G AWACS/E-7A Mission Crew Training Device

Program Type (PEO, Enterprise, of Operational):

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ [REDACTED] **J&A Type:** ☐ Class ☒ Individual

COORDINATION (DAFFARS 5306.304(a))

Date 1/25/2024	Project Lead / Program Mgr / Requiring Activity [REDACTED] HBSM [REDACTED]	Signature [REDACTED]
Date 26 Jan 2024	Contracting Officer [REDACTED] AFLCMC/HBSK / [REDACTED]	Signature [REDACTED].12 [REDACTED]
Date 25 Jan 2024	Program Counsel [REDACTED] 66 ABG [REDACTED]	Signature [REDACTED]
Date	Chief of the Contracting Office (COCO) [Name] [Office Symbol / Phone Number]	Signature
Date 09 Feb 2024	Competition Advocate [REDACTED] AFLCMC/PK-Hanscom OL / [REDACTED]	Signature [REDACTED]
Date 15 Feb 2024	Senior Contracting Official (SCO) [REDACTED] AFLCMC/PK (Hanscom OL) / [REDACTED]	Signature [REDACTED].1 [REDACTED]
Date	PEO / Commander (Requirements Cognizance) [Name] [Office Symbol / Phone Number]	Signature

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Date	Deputy Assistant Secretary (Contracting) [Name] [Office Symbol / Phone Number]	Signature
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Date	[Title] [Name] [Office Symbol / Phone Number]	Signature
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Date	[Title] [Name] [Office Symbol / Phone Number]	Signature
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APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date	PEO / Head of Procuring Activity / Designated Alternate [Official Signature Block]	Signature
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I. Agency and Contracting Activity.

II. Nature and/or description of the action being approved.

III. Description of supplies/services required to meet agency needs.

performance for this contract is for 4 years, one (1) base year and three (3) option years. This contract will use annual 3400 Operations and Maintenance (3400 O&M) appropriations, limiting the base period and option periods to 1 each year. The period of performance for this effort will begin in Fiscal Year (FY) 2024 and conclude in FY2028.

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IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

The statutory authority that permits other than full and open competition for this acquisition is 10 USC 2304(c)(1), as implemented by FAR 6.302-1(a)(2)(iii). Only one responsible source and no other services will satisfy agency requirements. FAR 6.303-2(b)(4). The proposed acquisition is a follow-on contract to MCTS PBL contract F8730-20-C-0009, which is a sole-source contract award to PLEXSYS Interface Products, with a Period of Performance of 1 Aug 2020 to 31 July 2024. The existing contracts are for all tasks related to the MCTS and the follow-on contract will be for all tasks related to the MCTS and DOMS operations, maintenance, active Diminishing Manufacturing Sources (DMS) management, hardware/software updates to the field systems, Distributed Mission Operations Network (DMON) Mission Package (MPT) updates and hardware/ software support to the 558th Software Engineering Squadron (SWES) in order to support Combat Air Forces (CAF) MCTS operations worldwide. The E-3G AWACS Block 40/45 MCTS and E-7A Wedgetail DOMS are high-fidelity simulations of E-3G and E-7A mission system hardware, software, performance, and capability. The USAF placed a delivery order on a sole source basis against the AWACS Modernization and Sustainment (AMASS) contract for the delivery of eight (8) MCTS. The DOMS is a requirement of the E-7AWedgetail Rapid Prototype contract.

PLEXSYS's highly specialized simulation products (hardware/software) are the key components of the MCTS and DOMS systems used to satisfy the E-3G AWACS and E-7A Wedgetail Ready Aircrew Program training requirements. IAW DFARS 227.7103-13 the Government concurs with PLEXSYS's assertion of restricted rights for the Advanced Simulation Combat Operations Trainer (ASCOT), Simulation Platform Interface (SPI), Launch Control, Distributed Interactive Simulation Protocol Data Unit Analyzer (DPA), Sonomarc, and Video Audio and Data for After-Action Review (VADAAR) software and there is no plan to challenge that assertion. In addition, PLEXSYS has stated that it will not provide technical data for its proprietary hardware or its computer software documentation to other vendors. Therefore, this acquisition will be a follow-on contract for the continued provision of highly specialized services.

Highly Specialized Capabilities and Qualifications FAR 6.303-2(b)(5)

As part of the current Performance Based Logistics (PBL) Contract, PLEXSYS provides the operation, maintenance, and software support of their products to ensure that the Block 40/45 MCTS is available for training and stays current with yearly changes of Combat Air Forces (CAF) DMO standards. Under this follow-on contract PLEXSYS will also provide the operation, maintenance, and software support of their products to ensure that the E-7A Wedgetail DOMS will be available for training and stays up to date with CAF DMO standard updates.

PLEXSYS is the only contractor with the security cleared and skilled workers to provide complete operations, maintenance, and surge support, primarily due to the fact that their proprietary hardware/software are the key components of the MCTS and DOMS. This includes simulations of sensor systems, datalinks, communication and navigation systems, constructive entities, common malfunctions, and databases. The MCTS and DOMS enables crew members to train in a stand-alone mode or network mode with other Distributed Mission Operations Network (DMON) participants for a full range of composite force employment options. The MCTS and DOMS has Instructor/Operator Stations (IOS) capable of managing the AWACS Block 40/45 MCTS and E-7A Wedgetail local and long-haul networking environment and the briefing/debriefing and Secure Video Teleconferencing functions. The system is capable of simulating missions ranging from single ship engagements to full theater-wide composite forces capable of interacting with other battle management Command and Control (C2) elements. The CAF DMO program utilizes training simulation services at Air Combat Command (ACC), Pacific Air Forces (PACAF), and United States Air Forces Europe (USAFE) enabling E-3G AWACS Block 40/45 and E-7A Wedgetail platforms interoperability between sites provided through the DMO Network. Award to any other source would result in substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the Air Force's training requirements.

Substantial Duplication of Costs FAR 6.302-1(a)(2)(iii)(A)

The Government has determined that award to any other source would result in significant duplication of cost to the program not recoverable through competition. The key components of the MCTS and DOMS systems are PLEXSYS proprietary hardware and software. The PLEXSYS software suite (i.e. Advanced Simulation Combat Operations Trainer (ASCOT), Simulation Platform Interface (SPI), Launch Control, Distributed Interactive Simulation Protocol Data Unit Analyzer (DPA), Sonomarc, and Video Audio and Data for After-Action Review (VADAAR)) is critically important to running the MCTS and DOMS systems. Without the PLEXSYS software suite, the MCTS and DOMS systems are essentially obsolete. PLEXSYS has already indicated that it will not provide any of its proprietary components (hardware and software) to another vendor. Without access to these proprietary components (in particular the ASCOT, SONOMARC and VADAAR software), a new contractor would have to design, develop, procure, install, test and obtain DMOM Certification for a new MCTS system(s) to satisfy CAF requirements. The Government estimate for this new MCTS is [REDACTED] and consists of Purchase of New Simulators: [REDACTED] (Development FY24-26), [REDACTED] (Procurement FY26-28), and [REDACTED] (Installation and Checkout FY28-30). These costs are based on the original Government investment and accounting for inflation. A new contractor would have to start from scratch to meet AF requirements for this effort due to the proprietary nature of the MCTS hardware and software. PLEXSYS has asserted restricted rights to the software and limited rights to the hardware and they will not provide access to the software and hardware to any other vendor. As a result, if the Government competed this effort, a new contractor would have to start from the beginning and design, build and install a brand-new system.

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Unacceptable Delay in Fulfilling Agency Requirements (FAR 6.302-1(a)(2)(iii)(B))

AFLCMC/HBS has determined that award to any other source would result in unacceptable delays in fulfilling the agency's requirements. Any break in awarding this highly-specialized contract to provide training system operations, maintenance, and hardware/software support will result in the Government incurring an unacceptable delay in critical Ready Aircrew Program (RAP) training. Historical schedule data from the E-3G AWACS, F-15C, F-15E, and F-16 Mission Trainer Development Programs indicates a new MCTS/ DOMS provider would require a minimum of thirty (30) to thirty-six (36) months to design, develop, produce, test and install new E-3GAWACS/E-7A Wedgetail Mission Crew Trainers. The MCTS/DOMS are integral part of the E-3G AWACS/E-7A Wedgetail enterprises and are critical to the training of combat ready crews. The MCTS/DOMS are required training devices for Initial Qualification Training (IQT), Mission Qualification Training (MQT), and Instructor Upgrade Training. Aircrews are required to participate in multiple training simulation events yearly to maintain "ready aircrew status." With no training device, Air Combat Command (ACC) and PACAF cannot train combat ready crews. Any delay in training of "ready aircrew program" crews as a result of the training delays will result in the E-3G and E-7A not being globally deployable. Accordingly, PLEXSYS is the only firm capable of providing the supplies and services described in Section III above without the U.S. Air Force experiencing unacceptable delays in fulfilling its requirements.

Accordingly, PLEXSYS is the only firm capable of providing the supplies and services described in Section III above without the U.S. Air Force experiencing substantial duplication of cost that could not be expected to be recovered through competition and unacceptable delays in fulfilling its requirements.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

The Government posted Request for Information (RFI) to industry to SAM.gov on 25 September 2023 with responses due by 25 October 2023. This RFI solicited potential sources that may possess the expertise / capabilities / experience to respond to the requirement to provide training / software services for the MCTS, following the end of the existing PBL contract in July 2024. The Government received six (6) responses within the allotted time. The PLEXSYS proprietary software is the backbone of the MCTS and will be used in the E7 DOMS. Without the PLEXSYS proprietary software, the MCTS would not function. If a vendor other than PLEXSYS is selected, the new vendor would need to, develop, build, test, and implement replacement software. This effort has a significant risk of interrupting critical training and readiness of Air Force personnel on the E-3G/E-7A. Two vendor software approaches were not feasible because of the short transition window and time needed for the vendors to either create or reverse engineer, test and validate software. The Government determined a third vendor was incapable of meeting the Government's MCTS requirements because it had no personnel familiar with the PLEXSYS software or industry partners with experience with PLEXSYS. This vendor did not explain how it would provide software to operate the MCTS. The remainder of the vendors proposed to either subcontract or purchase PLEXSYS software support available on Government Services Administration (GSA) schedule. While PLEXSYS proprietary software and hardware is available for purchase on GSA, PLEXSYS still retains ownership of its products and only PLEXSYS can tailor and configure these products for vendor use. This proposed action would likely increase costs or cause a reduction in performance. PLEXSYS stated in their RFI response "Any other company would be required to have a mechanism in place to work with PLEXSYS to update and maintain our commercial products since they would not have access to our proprietary data." Awarding the PBL contract to PLEXSYS is the most affordable and lowest risk option to avoid training disruptions for the Government.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Government will obtain other than certified cost or pricing data pursuant to FAR part 12, Commercial Items, for items determined to be commercial IAW FAR 2.101. to establish that the prices of commercial items are fair and reasonable. For any products/services over the Truthful Cost or Pricing Statute threshold, or modifications to commercial items greater than the larger between the Truthful Cost or Pricing threshold or 5% of the total price, the Government will obtain certified cost or pricing data and perform a comprehensive technical evaluation, audit, and cost/price analysis of the submitted proposal. The Government will utilize DCMA Forward Pricing Rate Recommendation (FPRR) or Forward Pricing Rate Agreement (FPRA), as available from DCMA, to ensure that the negotiated prices of all contract line items are fair and reasonable.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

The market research as of 25 Oct 2023 had identified significant risks and challenges inherent in a competitive procurement such as: - No potential offeror has an existing system that would be a form fit function replacement to the existing MCTS or DOMS - Extensive development for a new system would be needed at a substantial cost to the Government \$ [REDACTED] - No potential offeror other than the incumbent would be able to take on the new contract without; a gap in critical mission crew [REDACTED] resulting in an unacceptable loss of Combat Ready E-G crews. - Limited Government Furnished Information (GFI) is available - PLEXSYS has software to which they have asserted restricted rights and IAW DFARS 227.7103-13 the Government concurs with PLEXSYS assertion, which would make any other potential offeror unable to undertake the required tasks.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

Reference Section VII above.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

The Government received six (6) responses to the RFI. After extensive review of the responses, it was deemed that only PLEXSYS Interface Products could fulfill the Governments requirements without substantial duplication of cost and unacceptable delays.

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X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

At this time, the Government does not foresee being able to compete E-3GAWACS Block 40/45/E-7A Wedgetail simulation services in the future. To participate in any future competition, a non-incumbent company would have to provide full MCTS/DOMS training services at contract award. Doing so would entail tremendous upfront capital investment for the Government that would not be recouped through competition.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

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Specific Guidance for Completing this Template

I. Agency and Contracting Activity. (FAR 6.303-2(b)(1))

Self-explanatory

II. Nature and description of the action being processed. (FAR 6.303-2(b)(2))

An individual J&A is for a single contract. State whether the action is a new contract or a modification to an existing contract (identify contract number) and identify the contract type(s) planned (e.g., firm-fixed-price, cost-plus-incentive-fee). If exception 2 is cited (unusual or compelling urgency), include the date of UCA/contract/modification issuance and amount.

An individual J&A cannot be used to support more than one contract action irrespective of the quantities or the dollar value stated therein. If a proposed contract will contain unpriced options (including NTE prices), those options must be supported by a separate J&A prior to option exercise. Stoechner Security Services, Inc., 248077.3, Oct. 27, 1992, 92-2 CPD ¶ 286 at 6. This principle applies with equal force and effect whenever a contracting officer seeks to exercise FAR 52.217-8 (Option to Extend Services) if the contract that incorporated that clause by reference is not a Service Contract Labor Standards-covered contract, as such contracts do not include wage determinations that establish "prevailing labor rates provided by the Secretary of Labor." FAR 52.217-8. See Major Contracting Services, Inc., B-401472, Sep. 14, 2009, 2009 CPD ¶ 170 at 6, mot. for reconsid. den., Department of the Army --Reconsideration, B-401472.2, Dec. 7, 2009, 2009 CPD ¶ 250 at 5-6. In the alternative, the J&A supporting the basic contract must be a Class J&A. Although a Class J&A may be written for multiple awards to a single source, or multiple awards to various sources, it must describe each proposed contract action separately so it is clear that each such action is within scope of that Class J&A. FAR 6.303-1(d).

III. Description of the supplies/services required to meet agency needs. (FAR 6.303-2(b)(3))

Describe the supplies, services, or supplies and services to be acquired. Identify the quantities of each item, the estimated delivery dates/periods of performance, the type of appropriation(s) that will acquire those supplies/services, the total estimated value of the acquisition (including options), and the methodology used to arrive at that total estimated value. Provide sufficient information to demonstrate to the approving official that the acquisition of intellectual property (IP) and associated IP rights will satisfy the program's requirements, acquisition strategy, life cycle sustainment plan, systems engineering plan, and test and evaluation master plan.

The program's requirements for IP and IP rights in the Request for Proposals (RFP) must be consistent with the program's acquisition strategy, life cycle sustainment plan, systems engineering plan, and test and evaluation master plan. Accordingly, approving officials will ensure this section of the J&A:

(1) States whether the CLIN structure will include separately-priced CLINs for intellectual property (IP) and IP rights. Once the DFARS is revised to implement 10 U.S.C. § 4236, Air Force contracting officers will be required to negotiate a fair and reasonable price for IP and associated IP rights. Air Force contracting officers must start thinking now how they will do so during sole-source and competitive negotiations and how the resulting contract will reflect the results of those negotiations. Otherwise, they may be caught flat-footed if the RFP did not include such separately-priced CLINs and the Director of Defense Pricing and Contracting issues the final rule implementing 10 U.S.C. § 4236 --the effective date of which occurs one day prior to the award date. See also FAR 7.105(b)(14)(iii) and DFARS 215.470(a);

(2) Lists the titles of all such IP (including digital models) to be to be acquired contained in Exhibits A-N of the draft Request for Proposals; and

(3) Identifies the type of IP rights to be acquired to those deliverables (including the IP rights to be acquired to contract administration information since the standard DFARS clauses do not grant the Air Force any license rights to that type of IP).

Mission-focused business leaders are encouraged to engage early in the acquisition life-cycle with industry regarding the subjects of IP and IP rights. They are also encouraged to consult with approving officials, designees, or both, regarding those subjects well in advance of submitting a draft J&A to the appropriate approving official.

For Class J&As, identify each contract action (contract, modification) to be authorized by the proposed J&A for each potential offeror. If the same information applies to more than one contract, it need only be stated once.

For ID/IQ or requirements contracts, use the maximum dollar value of the total estimated orders as the total estimated value of the

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acquisition.

IV. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above. (FAR 6.303-2(b)(5))

Provide detailed facts sufficient to justify the use of the particular authority cited. Contracting without providing for full and open competition shall not be justified on the basis of a lack of advance planning or concerns relating to the amount of funds available (e.g., expiring funds). (FAR 6.301(c)).

Check the applicable box below. Checking a box will display the text for that section.

☐ **A. Only One Responsible Source** (FAR 6.302-1, DFARS 206.302-1, and DFARS PGI 206.302-1)

☐ **B. Unusual and Compelling Urgency** (FAR 6.302-2, DFARS 206.302-2, and DFARS PGI 206.302-2)

☐ **C. Industrial Mobilization; or Engineering, Developmental, or Research Capability** (FAR 6.302-3)

☐ **D. Authorized or Required by Statute** (FAR 6.302-5)

☐ **E. National Security** (FAR 6.302-6)

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by FAR 5.2 and, if not, indicate which exception under FAR 5.202 applies. (FAR 6.303-2(b)(6); FAR 6.303-2(b)(8); FAR 6.303-2(b)(10))

The contracting officer shall issue a sources sought synopsis or an RFI, provide the date the synopsis was issued, the synopsis number, and a brief description of its content. Identify the number of responses received, the names of the respondents, the results of the screening process, and the rationale for determining the unacceptability of any respondents, unless exempted by the MAJCOM SCO or Operating Location SCO with rank of GO or SES, otherwise approval by the HCA is required. (FAR 6.302-1(d)(2); DFARS 206.302-1(d); DFARS PGI 206.302-1(d); AFFARS 6306.302-1(d); AFFARS MP5301.601(a)(i)).

Specify whether this acquisition will require a Notice of proposed Contract Action (NOCA) IAW FAR 5.201 and if not, provide the exception IAW FAR 5.202. If a NOCA was or will be publicized provide the dates or expected dates of publication of the NOCA. Address any other actions taken or planned to facilitate competition for this acquisition.

When using the authority granted by FAR 6.302-1, an RFI or Sources Sought Synopsis is mandatory. (DFARS PGI 206.303-2(b)(i)).

When using the authority granted by FAR 6.302-2, agencies must request offers from as many potential sources as is practicable under the circumstances unless the Government would be seriously injured if the agency complied with the time periods specified in FAR 5.203. (FAR 5.202(a)(2); FAR 603.2-2(b)(2)).

When using the authority granted by FAR 6.302-3, no synopsis is required if the proposed contract action is for utility services other than telecommunications services and only one source is available. (FAR 5.202(a)(5)).

When using the authority granted by FAR 6.302-5, no synopsis is required if the proposed contract action results from acceptance of a proposal under the Small Business Innovative Research (SBIR) program. (FAR 5.202(a)(7)).

When using the authority granted by FAR 6.302-6, agencies must request offers from as many potential sources as is practicable under the circumstances. (FAR 6.302-6(c)(3)). The fact that a proposed solicitation or contract action contains classified information, or that access to classified information may be necessary to submit a proposal or perform the contract does not, in itself exempt that proposed contract action from the synopsis requirement. (FAR 52.202(a)(1)). Under such circumstances, this section must identify what alternatives the program office used to compete this requirement (e.g., accessing the National Reconnaissance Office's (NRO) Acquisition Research Center's Central Contractor Registry database or the National Security Agency's (NSA) Acquisition Resource Center's Business Registry database to identify potential cleared offerors and summarize what outreach the program office conducted with those potential cleared offerors to determine their interest in the proposed acquisition).

If qualifying country sources have expressed interest, but will be excluded, provide supporting rationale.

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VI. Determination by the contracting officer that the anticipated cost to the government will be fair and reasonable. (FAR 6.303-2(b)(7))

Include the following text, suitably tailored: "Based upon (1) certified cost or pricing data provided in the offeror's proposal, (2) the program office's technical analysis of the offeror's Basis of Estimates (BOE), and (3) inputs from the Defense Contract Management Agency, including from the Administrative Contracting Officer, the contracting officer expects they will be able to determine that the anticipated cost to the Government will be fair and reasonable."

VII. Description of the market research conducted and the results, or explain why market research was not conducted. (FAR 6.303-2(b)(8))

Discuss any market research conducted pursuant to FAR Part 10 (in addition to any actions described in Section VI above) and describe the results of that research. When other exceptions from the requirement to obtain full and open competition are relied upon, the market research might be limited to an examination of the acquisition history and experience with the marketplace under previous acquisitions for the same or similar items. Discuss what relevant documentation the contracting officer provided to respondents in a bidders library (e.g., capability development document, system engineering plan, system requirements document, statement of work/performance work statement, technical data package, compliance documents). Discuss how the contracting officer shared the Government's analysis of each respondent's response with that respondent.

If market research was not conducted, so state and provide the rationale.

VIII. Any other facts supporting the use of Other Than Full and Open Competition. (FAR 6.303-2(b)(9)(i))

Provide any other facts supporting the use of other than full and open competition, including an explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available. (FAR 6.303-2(b)(9)(i)).

IX. List of sources, if any, that expressed interest in the acquisition. (FAR 6.303-2(b)(10))

If all interested sources are identified in Section V, it is acceptable to state, "See Section V above."

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required. (FAR 6.303-2(b)(11))

Describe any actions taken or to be taken to foster competition for future acquisitions of the supplies or services being acquired. Describe potential actions the program office will take to remove existing barriers to competition identified in the justification and include a milestone schedule for accomplishing those actions. For example, if the barrier to competing acquisition of the supplies and services described in Section III is the lack of IP deliverables or sufficient IP rights to those deliverables, identify and analyze what possible steps could be taken to:

- (a) Acquire those IP deliverables and associated IP rights,*
- (b) Implement a modular open system approach consistent with the program's capability development document, acquisition strategy, and system engineering plan (10 U.S.C. §§ 4401-4403), or*
- (c) Reverse engineer subsystems or components of the end items described in Section III.*

IAW DFARS PGI 206.304(a)(S-70)(ii), for a non-competitive follow-on acquisition to a previous award for the same supply or service supported by a J&A citing the authority at FAR 6.302-1, include a copy of the previous J&A and include a discussion of the actions planned to overcome barriers to competition established in the previous justification, the status of those actions, and the results of those actions. The approval authority shall determine whether the planned actions were completed. If the planned actions were not completed, the justification for the follow-on acquisition shall be approved by the approval authority one-level above the approval authority for the previous justification. If the Senior Procurement Executive (SPE) approved the previous justification, the approval remains at the SPE level.

XI. Certification by the Contracting Officer. (FAR 6.303-2(b)(12))

As evidenced by their signature, the contracting officer certifies that this justification is accurate and complete to the best of their

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knowledge and belief.

XII. Certification by the technical/requirements personnel. (FAR 6.303-2(c))

As evidenced by their signatures, the technical and/or requirements personnel have certified that any supporting data contained herein, which is their responsibility, is both accurate and complete.
